THE CHARGE OF OWEN, INDICTED OF HIGH TREASON, IN THE KING'S BENCH, BY SIR FRANCIS BACON, HIS MAJESTY'S ATTORNEY-GENERAL.[1]

The treason wherewith this man stands charged, is for the kind and nature of it ancient, as ancient as there is any law of England, but in the particular late and upstart, and again in the manner and boldness of it new and almost unheard of till this man. Of what mind he is now I know not, but I take him as he was, and as he stands charged. For high treason (I tell you) is not written in ice; that when the body relenteth, the impression goeth away.

In this cause the evidence itself will spend little time: time therefore will be best spent in opening fully the nature of this treason, with the circumstances thereof; because the example is more than the man.

I think good therefore by way of inducement and declaration in this cause to open unto the court, jury, and hearers, five things.

The first is the clemency of the King; because it is news, and a kind of rarity, to have a proceeding in this place upon treason: and perhaps it may be marvelled by some, why after so long an intermission it should light upon this fellow; being a person but contemptible, a kind of venomous fly, and a hang-by of the seminaries.

The second is, the nature of this treason, as concerning the fact; which of all kinds of compassing the King's death, I hold to be the most perilous, and as much differing from other conspiracies, as the lifting up of a thousand hands against the King, like the giant Briareus, differs from lifting up one or a few hands.

The third point that I will speak unto is the doctrine or opinion, which is the ground of this treason; wherein I will not argue or speak like a divine or scholar, (as a scholar I know the disadvantage), but as a man bred in a civil life: and to speak plainly, I hold the opinion to be such that deserveth rather detestation than contestation.

The fourth point is the degree of this man's offence, which is

[1] Gibson Papers, vol. viii. no. 14. Rough draft, written apparently from dictation, largely corrected and interlined in Bacon's own hand.

more presumptuous than I have known any other to have fallen into in this kind, and hath a greater overflow of malice and treason.

And fifthly, I will remove somewhat that may seem to qualify and extenuate this man's offence, in that he hath not affirmed simply that it is lawful to kill the King, but conditionally that if the King be excommunicate, it is lawful to kill him: which maketh little difference either in law or peril.

For the King's clemency, I have said it of late upon a just occasion,[1] and I still speak it with comfort: I have now served his Majesty solicitor and attorney eight years and better; yet this is the first time that ever I gave in evidence against a traitor at this bar or any other. There hath not wanted matter in that party of the subjects whence this kind of offence floweth (I mean the papists) to irritate the King: he hath been irritated by the powder treason, which might have turned judgment into fury. He hath been irritated by wicked and monstrous libels; irritated by a general insolency and presumption in the Papists throughout the land; and yet I see his Majesty keepeth Cæsar's rule: *Nil malo, quam eos esse similes sui, et me mei.* He leaveth them to be like themselves; and he remaineth like himself, and striveth to overcome evil with goodness. A strange thing, bloody opinions, bloody doctrines, bloody examples, and yet the government still unstained with blood.

As for this Owen that is brought in question, though his person be in his condition contemptible; yet we see by miserable examples, that these wretches which are but the scum of the earth, have been able to stir earthquakes by murdering of princes; and if it were in case of contagion, as this is a contagion of the heart and soul, a rascal may bring in a plague into the city as well as a great man: so it is not the person, but the matter that is to be considered.

For the treason itself, which is the second point, my desire is to open it in the depth thereof, if it were possible; but it is bottomless. I said in the beginning, that this treason in the nature of it was old. It is not of the treasons whereof it may be said, from the beginning it was not so. You are indicted, Owen, not upon any statute made against the Pope's supremacy, or other matters that have reference to religion; but merely upon that

[1] In the charge against St. John, p. 143.

law which was born with the kingdom, and was law even in superstitious times when the Pope was received. The compassing and imagining the King's death was treason. The statute of 25 Edw. III. which was but declaratory, begins with this article as the capital of capitals in treason. Of all treasons the conspiracy against the King's person is the most odious and the most perilous: and so the civil law saith, *Conjurationes omnium proditionum odiosissimæ et perniciosissimæ.* Against hostile invasions and the adherence of subjects to enemies, Kings can arm. Rebellions must go over the bodies of many good subjects before they can hurt the King: but conspiracies against the persons of Kings are like thunder-bolts that strike upon the sudden, not to be avoided. *Major metus à singulis,* saith he, *quàm ab universis.* There is no preparation against them: and that preparation which may be of guard or custody, is a perpetual misery. And therefore they that have written of the privileges of ambassadors and of the amplitude of safe-conducts, have ever defined, that if an ambassador or a man that cometh in upon the highest safe-conducts, do practise matter of sedition in a state, yet by the law of nations he ought to be remanded; but if he conspire against the life of a prince by violence or poison, he is to be justiced: *Quia odium est omni privilegio majus.* Nay, even amongst enemies, and in the most deadly wars, yet nevertheless conspiracy and assassinate of princes hath been accounted villainous and execrable.

The manners of conspiring and compassing of the King's death are many: but it is most apparent that amongst all the rest this surmounteth. First, because it is grounded upon a motive of religion; which is a trumpet that inflameth the heart and powers of a man to daring and resolution. Secondly, it is general; for when a particular conspiracy is plotted or attempted against a King by some one or some few conspirators, it meets with a number of impediments. Commonly he that hath the head to devise it, hath not the heart to undertake it: and the person that is used, sometimes faileth in courage; sometimes he faileth in opportunity; sometimes he is touched with remorse. But to publish and maintain that it may be lawful for any man living to attempt the life of a King, this doctrine as a venomous sop, as a legion of malign spirits, or an universal temptation, doth enter at once into the hearts of all that are any ways pre-

pared, or of any predisposition to be traitors; so that whatsoever faileth in any one, is supplied in many. If one man faint, another will dare; if one man hath not the opportunity, another hath; if one man relent, another will be desperate. And thirdly, particular conspiracies have their periods of time, within which if they be not taken, they vanish; but this is endless, and importeth perpetuity of springing conspiracies. And so much concerning the nature of the fact.

For the third point, which is the doctrine, that upon an excommunication of the Pope, with sentence of deposing, a King by any son of Adam may be slaughtered; and that it is justice and no murder; and that their subjects are absolved of their allegiance, and their realms exposed to spoil and prey: I said before, that I would not argue the subtlety of the question: it is rather to be spoken to by way of accusation of the opinion as impious, than by way of dispute as doubtful. Nay, I say, it deserveth rather some holy war or league amongst all Christian princes of either religion for the extirping and rasing of this opinion and the authors thereof from the face of the earth, than the stile of pen or speech. Therefore in this kind I will speak to it a few words, and not otherwise. Nay, I protest, if I were a Papist I should say as much: Nay, I should speak it perhaps with more indignation and feeling. For this horrible opinion is our advantage, and it is their reproach, and will be their ruin.

This monster of opinion is to be accused of three most evident and most miserable effects.

First, Of the slander it bringeth to the Christian faith, which is a plain plantation of irreligion and atheism.

Secondly, The subversion which it introduceth into all policy and government.

Thirdly, The great calamity it bringeth upon the Papists themselves; of which the more moderate sort, as men misled, are to be pitied.

For the first, if a man doth visit the foul and polluted opinions, customs, or practices of heathenism, Mahometanism, and heresy, he shall find they do not attain to this height. Take the examples of the most damnable memory amongst the Heathen. The proscriptions in Rome of Sylla, and afterwards of the Three, what were they? They were but of a finite number of persons, and those not many, that were exposed unto any man's sword.

But what is that to the proscribing of a King, and all that shall take his part? And what was the reward of a soldier that amongst them killed one of the proscribed? A small piece of money. But what is the reward now of one that shall kill a King? The kingdom of heaven. The custom among the Heathen that was most scandalised was, that sometimes the priest sacrificed men; but yet you shall not read of any priesthood that sacrificed Kings.

The Mahometans make it a part of their religion to propagate their sect by the sword; but yet still by honourable wars, never by villanies and secret murders. Nay, I find that the Saracen prince, of whom the name of the assassins is derived, which had divers votaries at commandment, which he sent and employed to the killing of divers princes in the east, by one of whom Amurath the first was slain, and Edward the first of England was wounded, was put down and rooted out by common consent of the Mahometan princes.

The Anabaptist, it is true, cometh nearest. For they profess the pulling down of magistrates: and they can chaunt the psalm, *To bind their Kings in chains, and their nobles in fetters of iron.* This is the glory of the saints, much like the temporal authority that the Pope challengeth over princes. But then this is the difference, that that is a furious and fanatical folly, and this is a sad and solemn mischief: he *imagineth mischief as a law;* a law-like mischief.

As for the defence which they do make, it doth aggravate the sin, and turneth it from a cruelty towards man to a blasphemy towards God. For to say that all this is *in ordine ad spirituale,* and to a good end, and for the salvation of souls, it is directly to make God author of evil, and to draw him into the likeness of the prince of darkness; and to say with those that Saint Paul speaketh of, *Let us do evil that good may come thereof;* of whom the apostle saith excellently, *that their damnation is just.*

For the destroying of government universally, it is most evident that it is not the case of protestant princes only, but of catholics or papists likewise; (as the King hath excellently set forth.) Nay, it is not the case of princes only for anything that I can perceive, but of all subjects and private persons. For touching princes, let history be perused, what hath been the uses of excommunication; and namely this tumour of it, (the

deposing of Kings); it hath not been for heresy and schism alone, but for collation and investitures of bishopricks and benifices, intruding upon ecclesiastical possessions, violating of any ecclesiastical person or liberty. Nay, generally they maintain it, that it may be for any sin; and what King, Papist or Protestant, is there without sin? so that their difference wherein their doctors vary, that some hold that the Pope hath a temporal power immediately and precisely, and others but mediately and *in ordine ad spirituale,* is but a delusion and an abuse. For all cometh to one. What is there that may not be made spiritual by consequence: specially when he that giveth the sentence may make the case? and accordingly hath the miserable experience followed. For this murdering of Kings hath been put in practice, as well against papist Kings as protestant: save that it hath pleased God so to guide it by his admirable providence, as the attempts upon papist princes have been executed, and the attempts upon protestant princes have failed, except that of the Prince of Orange: and not that neither, until such time as he had joined too fast with the Duke of Anjou and the papists. As for subjects, I see not, nor ever could discern, but that by infallible consequence it is the case of all subjects and people, as well as of Kings; for it is all one reason, that a bishop, upon an excommunication of a private man, may give his lands and goods in spoil, or cause him to be slaughtered, as for the Pope to do it towards a King; and for a bishop to absolve the son from duty to the father, as for the Pope to absolve the subject from his allegiance to his King. And this is not my inference, but the very affirmative of Pope Urban the second, who in a brief to Godfrey, bishop of Luca, hath these very words, which cardinal Baronius reciteth in his Annals, *Non illos homicidas arbitramur, qui adversus excommunicatos zelo catholicæ matris ardentes eorum quoslibet trucidare contigerit,* speaking generally of all excommunications.

Here the rough copy ends abruptly. Between it and the fair and full copy which follows, another must have intervened, containing all the corrections made in the rough copy, and many more.

[27] Hitherto I have set forth the nature of man, whose pride and other passions have compelled him to submit himself to government, together with the great power of his governor, whom I compared to *Leviathan*, taking that comparison out of the two last verses of the one and fortieth of *Job*, where God, having set forth the great power of *Leviathan*, calleth him King of the Proud. "There is nothing," saith he, "on earth to be compared with him. He is made so as not to be afraid. He seeth every high thing below him, and is king of all the children of pride." [Job 41:33–34] But because he is mortal and subject to decay, as all other earthly creatures are, and because there is that in heaven (though not on earth) that he should stand in fear of, and whose laws he ought to obey, I shall in the next following chapters speak of his diseases and the causes of his mortality, and of what laws of nature he is bound to obey.

Chapter XXIX

Of those things that Weaken or tend to the Dissolution *of a* Commonwealth

Dissolution of Commonwealths proceedeth from their Imperfect Institutions.

[1] Though nothing can be immortal which mortals make, yet if men had the use of reason they pretend to, their commonwealths might be secured at least from perishing by internal diseases. For by the nature of their institution they are designed to live as long as mankind, or as the laws of nature, or as justice itself, which gives them life. Therefore, when they come to be dissolved, not by external violence but intestine* disorder, the fault is not in men as they are the *matter*, but as they are the *makers* and orderers of them. For men, as they become at last weary of irregular* jostling* and hewing* one another, and desire with all their hearts to conform themselves into one firm and lasting edifice, so for want, both of the art of making fit laws to square their actions by, and also of humility and patience to suffer the rude* and cumbersome points of their present greatness to be taken off, they cannot, without the help of a very able architect, be compiled into any other than a crazy building, such as, hardly lasting out their own time, must assuredly fall upon the heads of their posterity.

[2] Amongst the *infirmities*, therefore, of a commonwealth I will reckon in the first place those that arise from an imperfect institution, and resemble the diseases of a natural body which proceed from a defectuous* procreation.

Want of Absolute power.

[3] Of which this is one: *that a man, to obtain a kingdom, is sometimes content with less power than to the peace and defence of the commonwealth is necessarily required.* From whence it cometh to pass that, when the exercise of the power laid by is for the public safety to be resumed, it hath the resemblance of an unjust act, which disposeth great numbers of men (when occasion is presented) to rebel (in the same manner as the bodies of children, gotten by diseased parents, are subject either to untimely death, or to purge the ill quality, derived from their vicious* conception, by breaking out into biles* and scabs). And when kings deny themselves some such necessary power, it is not always (though sometimes) out of ignorance of what is necessary to the office they undertake, but many times out of a hope to recover the same again at their pleasure. Wherein they reason not well, because such as will hold them to their promises shall be maintained against them by foreign commonwealths, who in order to the good of their own subjects let slip few occasions to *weaken* the estate of their neighbours.

So was *Thomas Becket*, Archbishop of *Canterbury*, supported against *Henry* the Second by the Pope, the subjection of ecclesiastics to the commonwealth having been dispensed with by *William the Conqueror* at his reception, when he took an oath not to infringe the liberty of the church. And so were the *barons*, whose power was by *William Rufus* (to have their help in transferring the succession from his elder brother to himself) increased to a degree inconsistent with the sovereign power, maintained in their rebellion against King *John* by the French.

[4] Nor does this happen in monarchy only. For whereas the style of the ancient Roman commonwealth was *The Senate and People of Rome*, neither senate nor people pretended to the whole power; which first caused the seditions of *Tiberius Gracchus, Caius Gracchus, Lucius Saturninus*, and others, and afterwards the wars between the senate and the people under *Marius* and *Sulla*, and again under *Pompey* and *Caesar*, to the extinction of their democracy, and the setting up of monarchy.

[5] The people of *Athens* bound themselves but from one only action, which was that no man on pain of death should propound the renewing of the war for the island of *Salamis*; and yet thereby, if *Solon* had not caused to be given out he was mad, and afterwards (in gesture and habit of a madman, and in verse) propounded it to the people that flocked about him, they had had an enemy perpetually in readiness, even at the gates of their city; such damage or shifts are all commonwealths forced to, that have their power never so little limited.[1]

1. This paragraph is not in OL. The anecdote is from Plutarch's *Life of Solon*, viii.

Private Judgement of Good and Evil.

[6] In the second place, I observe the *diseases* of a commonwealth that proceed from the poison of seditious doctrines, whereof one is: *That every private man is judge of good and evil actions.* This is true in the condition of mere nature, where there are no civil laws, and also under civil government, in such cases as are not determined by the law. But otherwise, it is manifest that the measure of good and evil actions is the civil law, and the judge the legislator, who is always representative of the commonwealth. From this false doctrine men are disposed to debate with themselves, and dispute the commands of the commonwealth, and afterwards to obey or disobey them, as in their private judgments they shall think fit. Whereby the commonwealth is distracted and *weakened.*

Erroneous conscience.

[7] Another doctrine repugnant to civil society is that *whatsoever a man does against his conscience is sin;*[2] and it dependeth on the presumption of making himself judge of good and evil. For a man's conscience and his judgment is the same thing; and as the judgment, so also the conscience may be erroneous. Therefore, though he that is subject to no civil law sinneth in all he does against his conscience, because he has no other rule to follow but his own reason, yet it is not so with him that lives in a commonwealth, because the law is the public conscience, by which he hath already undertaken to be guided. Otherwise, in such diversity as there is of private consciences, which are but private opinions, the commonwealth must needs be distracted, and no man dare to obey the sovereign power farther than it shall seem good in his own eyes.

Pretence of Inspiration.

[8] It hath been also commonly taught *That faith and sanctity are not to be attained by study and reason, but by supernatural inspiration or infusion,*[3] which granted, I see not why any man should render a reason of his faith, or why every Christian should not be also a prophet, or why any man should take the law of his country, rather than his own inspiration, for the rule of his action. *And thus we fall again into the fault of taking upon us to judge of good and evil, or to make judges of it such private men as pretend to be supernaturally inspired, to the dissolution of all civil government.[4] Faith comes by hearing,[5] and hearing by those accidents which guide us into the presence of *them that speak to us,[6] which

2. Cf. Calvin, *Institutes* II, ii, 22, viii, 1.

3. Cf. Calvin, *Institutes* I, vii, 5.

4. OL: "This, again, is to arrogate to oneself the judgment of good and evil, and disregarding the laws of the commonwealth, to offer oneself to be governed either by one's own discretion or by that of private men who fraudulently claim to have been supernaturally inspired."

5. An allusion to Romans 10:17, to be discussed in xliii, 8.

6. OL: "those whom it is useful to hear."

accidents are all contrived by God Almighty, and yet are not supernatural, but only (for the great number of them that concur to every effect) unobservable. Faith and sanctity are, indeed, not very frequent, but yet they are not miracles, but brought to pass by education, discipline, correction, and other natural ways, by which God worketh them in his elect at such time as he thinketh fit.

*And these three opinions, pernicious to peace and government, have in this part of the world proceeded chiefly from the tongues and pens of unlearned divines who, joining the words of Holy Scripture together otherwise than is agreeable to reason, do what they can to make men think that sanctity and natural reason cannot stand together.[7]

Subjecting the Sovereign Power to Civil Laws.

[9] A fourth opinion repugnant to the nature of a commonwealth is this: *That he that hath the sovereign power is subject to the civil laws.* It is true that sovereigns are all subject to the laws of nature, because such laws be divine, and cannot by any man or commonwealth be abrogated. But to those laws which the sovereign himself, that is, which the commonwealth maketh, he is not subject. For to be subject to laws is to be subject to the commonwealth, that is, to the sovereign representative, that is, to himself, which is not subjection, but freedom from the laws. Which error, because it setteth the laws above the sovereign, setteth also a judge above him, and a power to punish him, which is to make a new sovereign; and again for the same reason a third, to punish the second; and so continually without end, to the confusion and dissolution of the commonwealth.

Attributing of absolute Propriety to Subjects.

[10] A fifth doctrine that tendeth to the dissolution of a commonwealth is *That every private man has an absolute propriety in his goods, such as excludeth the right of the sovereign.* Every man has indeed a propriety that excludes the right of every other subject; and he has it only from the sovereign power, without the protection whereof every other man should have equal right to the same. But if the right of the sovereign also be excluded, he cannot perform the office they have put him into, which is to defend them both from foreign enemies and from the injuries of one another; and consequently, there is no longer a commonwealth.

[11] And if the propriety of subjects exclude not the right of the sovereign representative to their goods, much less [does it exclude his right] to their offices of judicature or execution, in which they represent the sovereign himself.

Dividing of the Sovereign Power.

[12] There is a sixth doctrine plainly and directly against the essence of a commonwealth, and it is this: *That the sovereign power may be divided.* For what is it to divide the power of a common-

7. Not in OL.

wealth, but to dissolve it; for powers divided mutually destroy each other. And for these doctrines men are chiefly beholding to some of those that, making profession of the laws, endeavour to make them depend upon their own learning, and not upon the legislative power.

Imitation of Neighbour Nations.

[13] And as false doctrine, so also oftentimes the example of different government in a neighbouring nation disposeth men to alteration of the form already settled. So the people of the Jews were stirred up to reject God, and to call upon the prophet *Samuel* for a king after the manner of the nations [1 Samuel 8:4–9]; so also the lesser cities of *Greece* were continually disturbed with seditions of the aristocratical and democratical factions, one part of almost every commonwealth desiring to imitate the Lacedemonians, the other, the Athenians [Thucydides, III, 82].

And I doubt not but many men have been contented to see the late troubles in *England*, out of an imitation of the Low Countries, supposing there needed no more to grow rich than to change, as they had done, the form of their government.[8] For the constitution of man's nature is of itself subject to desire novelty. When, therefore, they are provoked to the same by the neighbourhood also of those that have been enriched by it, it is almost impossible for them not to be content with those that solicit them to change, and love the first beginnings, though they be grieved with the continuance of disorder (like hot bloods that, having gotten the itch, tear themselves with their own nails, till they can endure the smart no longer).

Imitation of the Greeks, and Romans.

[14] And as to rebellion in particular against monarchy, one of the most frequent causes of it is the reading of the books of policy* and histories of the ancient Greeks and Romans, from which young men (and all others that are unprovided of the antidote of solid reason), receiving a strong and delightful impression of the great exploits of war achieved by the conductors of their armies, receive withal a pleasing idea of all they have done besides, and imagine their great prosperity not to have proceeded from the emulation* of particular men, but from the virtue of their popular form of government (not considering the frequent sedi-

8. OL: "And I doubt not but many of our men have been glad to see the war which is now going on in England, thinking that nothing more is needed to grow rich but to set aside their king, as the Dutch have; for they attribute to the Dutch change of government the wealth they owe to their own industry." This is one of a number of passages in which temporal references in OL cast doubt on its having been composed in the late 1660s. Others are xviii, 16, xix, 23, and xxi, 6. Tuck offers a brief defense of the priority of the English version in the introduction to his edition of *Leviathan* (p. x), but does not attempt to deal with all the relevant evidence.

tions and civil wars produced by the imperfection of their policy*).

From the reading, I say, of such books, men have undertaken to kill their kings, because the Greek and Latin writers, in their books and discourses of policy, make it lawful and laudable for any man so to do, provided, before he do it, he call him tyrant. For they say not *regicide*, that is, killing of a king, but *tyrannicide*, that is, killing of a tyrant is lawful. From the same books they that live under a monarch conceive an opinion that the subjects in a popular commonwealth enjoy liberty, but that in a monarchy they are all slaves. I say, they that live under a monarchy conceive such an opinion, not they that live under a popular government: for they find no such matter.

In sum, I cannot imagine how anything can be more prejudicial to a monarchy than the allowing of such books to be publicly* read without present applying such correctives of discreet masters as are fit to take away their venom, which venom I will not doubt* to compare to the biting of a mad dog, which is a disease the physicians call *hydrophobia*, or *fear of water*. For as he that is so bitten has a continual torment of thirst, and yet abhorreth water, and is in such an estate as if the poison endeavoured to convert him into a dog, so when a monarchy is once bitten to the quick by those democratical writers that continually snarl at that estate, it wanteth* nothing more than a strong monarch, which nevertheless out of a certain *tyrannophobia* (or fear of being strongly governed), when they have him, they abhor.

[15] As there have been doctors that hold there be three souls in a man, so there be also that think there may be more souls (that is, more sovereigns) than one in a commonwealth, and set up a *supremacy* against the *sovereignty*, *canons* against *laws*, and a *ghostly* authority* against the *civil*, working on men's minds with words and distinctions that of themselves signify nothing, but bewray* (by their obscurity) that there walketh (as some think, invisibly) another kingdom, as it were a kingdom of fairies, in the dark.

Now, seeing it is manifest that the civil power and the power of the commonwealth is the same thing, and that supremacy, and the power of making canons and granting faculties, implieth a commonwealth, it followeth that where one is sovereign, another supreme, where one can make laws and another make canons, there must needs be two commonwealths of one and the same subjects, which is a kingdom divided in itself, and cannot stand. For notwithstanding the insignificant distinction of *temporal* and *ghostly*, they are still two kingdoms, and every subject is subject to two masters. For seeing the *ghostly* power challengeth the right to declare what is sin, it challengeth by consequence to declare what is law (sin being nothing but the transgression of the law); and again, the civil power

challenging to declare what is law, every subject must obey two masters, who both will have their commands be observed as law, which is impossible. Or, if it be but one kingdom, either the *civil*, which is the power of the commonwealth, must be subordinate to the *ghostly*, and then there is no sovereignty but the *ghostly*, or the *ghostly* must be subordinate to the *temporal*, and then there is no supremacy but the temporal.

When, therefore, these two powers oppose one another, the commonwealth cannot but be in great danger of civil war and dissolution. For the *civil* authority being more visible, and standing in the clearer light of natural reason, cannot choose but draw to it in all times a very considerable part of the people; and the *spiritual*, though it stand in the darkness of School distinctions and hard words, yet because the fear of darkness and ghosts is greater than other fears, cannot want a party sufficient to trouble, and sometimes to destroy a commonwealth; and this is a disease which not unfitly may be compared to the epilepsy, or falling sickness (which the Jews took to be one kind of possession by spirits) in the body natural. For as in this disease there is an unnatural spirit (or wind) in the head that obstructeth the roots of the nerves and, moving them violently, taketh away the motion which naturally they should have from the power of the soul in the brain, and thereby causeth violent and irregular motions (which men call convulsions) in the parts, insomuch as he that is seized therewith falleth down sometimes into the water, and sometimes into the fire, as a man deprived of his senses, so also in the body politic, when the spiritual power moveth the members of a commonwealth (by the terror of punishments and hope of rewards, which are the nerves of it) otherwise than by the civil power (which is the soul of the commonwealth) they ought to be moved, and by strange and hard words suffocates their understanding, it must needs thereby distract the people, and either *overwhelm the commonwealth with oppression, or cast it[9] into the fire of a civil war.

Mixed Government.

[16][10] Sometimes also in the merely civil government there be more than one soul, as when the power of levying money (which is the nutritive faculty) has depended on a general assembly, the power of conduct and command (which is the motive faculty) on one man, and the power of making laws (which is the rational faculty) on the accidental consent, not only of those two, but also of a third; this endangereth the commonwealth, sometimes for want of consent to good laws, but most often for want of such nourishment as is necessary to life and motion. For although few perceive, that such government is not government, but division of the commonwealth into three factions, and call it mixed monarchy,

9. OL: "the commonwealth is dissolved by vacillating laws or it is cast."

10. This paragraph and the next have no analogue in OL.

yet the truth is that it is not one independent commonwealth, but three independent factions, nor one representative person, but three. In the kingdom of God there may be three persons independent, without breach of unity in God that reigneth; but where men reign, that be subject to diversity of opinions, it cannot be so. And therefore, if the king bear the person of the people, and the general assembly bear also the person of the people, and another assembly bear the person of a part of the people, they are not one person, nor one sovereign, but three persons, and three sovereigns.

[17] To what disease in the natural body of man I may exactly compare this irregularity of a commonwealth, I know not. But I have seen a man that had another man growing out of his side, with an head, arms, breast, and stomach of his own; if he had had another man growing out of his other side, the comparison might then have been exact.

Want of Money.

[18] *Hitherto I have named such diseases of a commonwealth as are of the greatest and most present danger. There be other, not so great, which nevertheless are not unfit to be observed. As first, the difficulty of raising money for the necessary uses of the commonwealth, especially in the approach of war. This difficulty ariseth from the opinion that every subject hath of a propriety in his lands and goods, exclusive of the sovereign's right to the use of the same.[11]

From whence it cometh to pass that the sovereign power, which foreseeth the necessities and dangers of the commonwealth, finding the passage of money to the public treasure obstructed by the tenacity of the people, whereas it ought to extend itself to encounter and prevent such dangers in their beginnings, contracteth itself as long as it can, and when it cannot longer, struggles with the people by stratagems of law, to obtain little sums, which not sufficing, he is fain at last violently to open the way for present supply or perish; and being put often to these extremities, at last reduceth the people to their due temper, or else the commonwealth must perish. Insomuch as we may compare this distemper very aptly to an ague, wherein, the fleshy parts being congealed or by venomous matter obstructed, the veins which by their natural course empty themselves into the heart are not (as they ought to be) supplied from the arteries; whereby there succeedeth at first a cold contraction, and trembling of the limbs, and afterwards a hot and strong endeavour of the heart to force a passage for the

11. OL: "There is also sometimes in commonwealths a disease to be compared with tertian fever [a fever recurring on alternate days], viz., when evil citizens, from hatred of government or the ruler, or because civil war is advantageous to them, by carping criticism of the rulers prevent the gathering of the necessary funds to be collected from the citizens for the well-being of the commonwealth."

blood; and before it can do that, contenteth itself with the small refreshments of such things as cool for a time, till (if nature be strong enough) it break at last the contumacy of the parts obstructed, and dissipateth the venom into sweat, or (if nature be too weak) the patient dieth.

Monopolies and abuses of Publicans.

[19] Again, there is sometimes in a commonwealth a disease which resembleth the pleurisy; and that is when the treasure of the commonwealth, flowing out of its due course, is gathered together in too much abundance in one or a few private men, by monopolies or by farms of the public revenues, in the same manner as the blood in a pleurisy, getting into the membrane of the breast, breedeth there an inflammation, accompanied with a fever and painful stitches.

Popular men.

[20] Also the popularity* of a potent subject (unless the commonwealth have very good caution* of his fidelity) is a dangerous disease, because the people (which should receive their motion from the authority of the sovereign), by the flattery and by the reputation of an ambitious man, are drawn away from their obedience to the laws, to follow a man of whose virtues and designs they have no knowledge. And this is commonly of more danger in a popular government than in a monarchy, because an army is of so great force and multitude as it may easily be made believe they are the people. By this means it was that *Julius Caesar*, who was set up by the people against the Senate, having won to himself the affections of his army, made himself master, both of Senate and people. And this proceeding of popular and ambitious men is plain rebellion, and may be resembled to the effects of witchcraft.

Excessive greatness of a Town or multitude of Corporations.

Liberty of disputing against Sovereign Power.

[21] Another infirmity of a commonwealth is the immoderate greatness of a town, when it is able to furnish out of its own circuit,* the number and expense of a great army, as also the great number of corporations,* which are as it were many lesser commonwealths in the bowels of a greater, like worms in the entrails of a natural man. To which may be added, the liberty of disputing against absolute power by pretenders to political prudence, which, though bred for the most part in the lees* of the people, yet animated by false doctrines, are perpetually meddling with the fundamental laws, to the molestation of the commonwealth, like the little worms, which physicians call *ascarides*.

Dissolution of the Commonwealth.

[22] We may further add the insatiable appetite, or *Bulimia*, of enlarging dominion, with the incurable *wounds* thereby many times received from the enemy, and the *wens*,* of ununited conquests, which are many times a burden, and with less danger lost than kept, as also the *lethargy* of ease, and *consumption* of riot and vain expense.

[23] Lastly, when in a war (foreign or intestine) the enemies get a final victory, so as (the forces of the commonwealth keeping the field no longer),

there is no farther protection of subjects in their loyalty, then is the commonwealth DISSOLVED, and every man at liberty to protect himself by such courses as his own discretion shall suggest unto him. For the sovereign is the public soul, giving life and motion to the commonwealth, which expiring, the members are governed by it no more than the carcass of a man by his departed (though immortal) soul. For though the right of a sovereign monarch cannot be extinguished by the act of another, yet the obligation of the members may. For he that wants protection may seek it anywhere; and when he hath it, is obliged (without fraudulent pretence of having submitted himself out of fear) to protect his protection as long as he is able.[12] But when the power of an assembly is once suppressed, the right of the same perisheth utterly, because the assembly itself is extinct; and consequently, there is no possibility for the sovereignty to re-enter.

CHAPTER XXX

Of the OFFICE *of the Sovereign Representative*

The Procuration of the Good of the People.

[1] The office* of the sovereign (be it a monarch or an assembly) consisteth in the end for which he was trusted with the sovereign power, namely, the procuration of *the safety of the people*, to which he is obliged by the law of nature, and to render an account thereof to God, the author of that law, and to none but him. But by safety here is not meant a bare preservation, but also all other contentments of life, which every man by lawful industry, without danger or hurt to the commonwealth, shall acquire to himself.

By Instruction & Laws.

[2] And this is intended* should be done, not by care applied to individuals, further than their protection from injuries when they shall complain, but by a general providence, contained in public instruction, both of doctrine and example, and in the making and executing of good laws, to which individual persons may apply their own cases.

Against the duty of a Sovereign to relinquish any Essential Right of Sovereignty:

[3] And because, if the essential rights of sovereignty (specified before in the eighteenth chapter) be taken away, the commonwealth is thereby dissolved, and every man returneth into the condition and calamity of a war with every other man (which is the greatest evil that can happen in this life), it is the office of the sovereign to maintain those rights entire; and consequently, against his duty, first, to transfer to another or to lay from himself any of them. For he

12. Clarendon complained that by this "the entire loss of one battle" would "put an end to the sovereignty of any prince in Europe." (*Brief View*, pp. 167–68).